

The court notes that on July 6, 2026, Plaintiff filed an opposition to Defendant's April 20, 2026, motion to strike. On July 8, 2026, Defendant filed a reply to the opposition. Plaintiff filed a first amended complaint on May 18, 2026, rendering the April 20, 2026, demurrer and motion to strike moot. Defendant then filed a demurer to the first amended complaint on June 9, 2026. However, Defendant did not file a new motion to strike based on the first amended complaint. As such, there is no proper motion to strike pending before the court.

25CV-05980

Velocity Investments, LLC vs Abundio Avalos

Order to Show Cause Re: Sanctions Plaintiff Counsel and Defendant FTA at CMC on 6/8/2026

Appearance required.

26CV-00869

Javier Alvarado vs Central Valley Opportunity Center, Incorporated

Motion for Judgment on the Pleadings

The motion for judgment on the pleadings is DENIED.

The request for judicial notice is DENIED as to Exhibits A, B, and E, as the truth or interpretation of the documents are disputed.

The request for judicial notice is GRANTED as to Exhibits C and D, but only as to the existence of the documents and not the truth or interpretation of the contents as they are disputed.

The request for judicial notice of Defendant's and Plaintiff's counsel's website is DENIED as it is not relevant at this stage.

Plaintiff's objections to the Declaration of Bryan B. Miller are OVERRULED.

Plaintiff's objections to the Declaration of Custodian of Records are OVERRULED.

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; see also *Templo v. State of California* (2018) 24 Cal.App.5th 730, 735 [motion for judgment on the pleadings is equivalent to a demurrer].)

"[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution." (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

Defendant contends that the prior class settlement in *Rodriguez v. Central Valley Opportunity Center, Incorporated*, Merced Superior Court Case No. 22CV-01358, bars this action based on res judicata. In support, Defendant requests judicial notice of certain

documents, that if the truth or interpretation of the matter asserted therein is accepted, would prove Plaintiff's claims are precluded. Of those documents, the truth and interpretation of the contents of Exhibits A, B, and E are disputed by Plaintiff. Further, the interpretation and legal effect of Exhibits C and D are also disputed by Plaintiff. These are factual disputes that require evidentiary resolution.

This leaves the motion for judgment on the pleadings to challenge the deficiency of the complaint on its face.

Here, accepting Plaintiff's allegations as true, Plaintiff has alleged facts sufficient to constitute each cause of action. Plaintiff alleges he was employed through October 20, 2023. Plaintiff alleges he was a non-exempt employee entitled to wages, overtime, meal and rest period premiums, unreimbursed expenses, and penalties. Plaintiff alleges Defendant failed to pay all wages, failed to provide compliant meal and rest periods, failed to pay final wages, failed to reimburse business expenses, and engaged in unlawful business practices. As Defendant's evidence rebutting those allegations will not be considered for the motion for judgment on the pleadings as they require evidentiary resolution, those allegations are sufficient at this stage.

Accordingly, Defendant's motion is denied.

26CV-02506 Laura Emery vs Monique Garza

Order to Show Cause re: Restraining Order

Appearance required.

26CV-02887 Petition of: Ruby Mouton

Order to Show Cause Re: Name Change

Appearance required.

26CV-03267 In the Matter of: Inspection of 7238 Almond Ave., Winton, CA, 95388

Application for Inspection Warrant and Abatement Order

The application for inspection warrant and abatement order is GRANTED.

Based on the Declaration of Code Enforcement Officer Reeder, and the attached exhibits thereto, the court finds good cause to grant the application for inspection warrant.

The court will sign the order lodged with the court on June 8, 2026.
